

EU: White House probe targets exports over firms

送信者: EG Geo-technology 受信日時: 2026-08-28 01:41

【メール原文】

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White House digital probe will target EU exports not firms

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President Trump's Section 301 investigation into EU digital regulations will likely follow his first-term playbook, applying tariff pressure on select European exports rather than individual firms.

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If the pending overcapacity investigation yields tariffs of around 5%, as expected, forced labor and overcapacity duties alone would reach the 15% ceiling of the US-EU Turnberry truce, leaving no headroom for tech-related levies.

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The investigation's months-long timeline creates space for dialogue, though the EU may suspend Turnberry and retaliate if White House levies push above 15%.

The absence of a formal initiation notice reflects stretched resources at USTR. On July 24, President Trump said he would open a new Section 301 probe into EU digital trade rules, citing two EU DMA fines on Google totaling €890 million (\$1 billion). The delay in initiation likely reflects USTR capacity constraints as it prioritizes ongoing Section 301 overcapacity cases; once initiated, the EU probe could be expedited to complete in about five months, leaving time for negotiations.

The US treats the 15% Turnberry ceiling as a soft, not binding, ceiling. Turnberry—the July 2025 US-EU tariff truce—capped US duties on EU goods at 15%. The main friction is over Google's EU fines, which Washington views as de facto tariffs, not regulatory actions. Because they were imposed after Turnberry was signed, the US likely sees any retaliation as falling outside the agreement's scope.

The US is also signaling broader dissatisfaction beyond EU digital regulation. The US Ambassador to the EU recently called the EU's Carbon Border Adjustment Mechanism (CBAM) a "tariff by another name," and said the EU's planned expansion of CBAM-covered products would breach Turnberry—especially as the US rolled back most duties on downstream industrial derivative products.

A Section 301 case provides the US with a flexible escalation tool rather than pre-committing to specific tariffs. This fits the administration's playbook of using targeted tariffs to extract concessions: pending overcapacity and forced-labor Section 301 tariffs are largely calibrated to close the gap up to the International Emergency Economic Powers Act (IEEPA) deal-rate ceiling, while tariffs above that level would be aimed at discrete policy wins (digital regulation or other longstanding irritants).

The administration will use tariffs on politically sensitive EU exports as its primary lever. The USTR has not reiterated its previous threat to target individual EU tech companies. Instead, the administration is more likely to follow the Trump 1.0 playbook by targeting politically sensitive EU exports. If, contrary to Eurasia Group's expectations, Washington were to target specific European firms, it would likely lean on trade and sanctions tools such as Export Administration Regulations.

The Turnberry deal faces greater risk if the overcapacity investigation results in duties of 5% or more. Once the EU digital probe is formally initiated, it could be expedited to complete in about five months, leaving time for negotiations. USTR is likely to announce its findings on overcapacity in late August at the earliest. The existing 10% forced labor duties (inclusive of the most favored nation, or MFN, rate), combined with duties of around 5% (our basecase) from the pending overcapacity investigation would bring the overall rate close to or at the 15% ceiling agreed to in Turnberry. Any additional levies from the EU tech 301 investigation would therefore push the total rate above 15%.

Brussels is highly unlikely to walk back the Google fines or water down the DMA and Digital Services Act (DSA). The DMA and DSA enjoy broad support across EU member states and lawmakers; reversing them would spark serious pushback, potentially threatening European Commission President Ursula von der Leyen's position.

Brussels will probably refrain from opening major new investigations into US platforms and will focus DSA enforcement on Chinese entities, to balance the more US-focused DMA. Even so, several major existing cases are still underway, including a recent preliminary finding that Meta's Facebook and Instagram are in breach of DSA rules against addictive design. The Commission will aim to persuade Meta to implement changes to its products, such as those the company recently agreed to in its \$17 billion settlement with US states—also in relation to addictive design—to avoid a penalty. Failing that, it can also drag out the investigation and issue only a small fine.

The EU may suspend the agreement if the US escalates beyond the 15% tariff ceiling. The deal includes safeguards allowing the Commission to suspend it through tariffs or other coercive measures. The Commission treats 15% as a hard ceiling. A breach would likely trigger suspension of the agreement and reinstatement of MFN rates across a wide range of US products. The Commission would probably hold retaliatory tariffs on €93 billion of US exports—already approved by member states—in reserve unless faced with a more serious escalation, such as punitive hikes on critical sectors or horizontal tariffs well above 15%. That scenario would create significant disruption and uncertainty while both sides renegotiate.

Nancy Wei

Analyst, Trade & Supply Chains

Wei@eurasiagroup.net

Nick Reiners

Senior Analyst, Geo-technology

reiners.ne@eurasiagroup.net

Federico Santi

Senior Analyst, Europe

+44 20 7375 6930

santi.ne@eurasiagroup.net

Clayton Allen

Practice Head, United States
+1 202.903.0027
allen@eurasiagroup.net
Mujtaba Rahman
Managing Director, Europe
+44 (0) 207.553.9823
rahman@eurasiagroup.net
EG Geo-technology
geo-technology@eurasiagroup.net

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